UPSC INDIAN POLITY

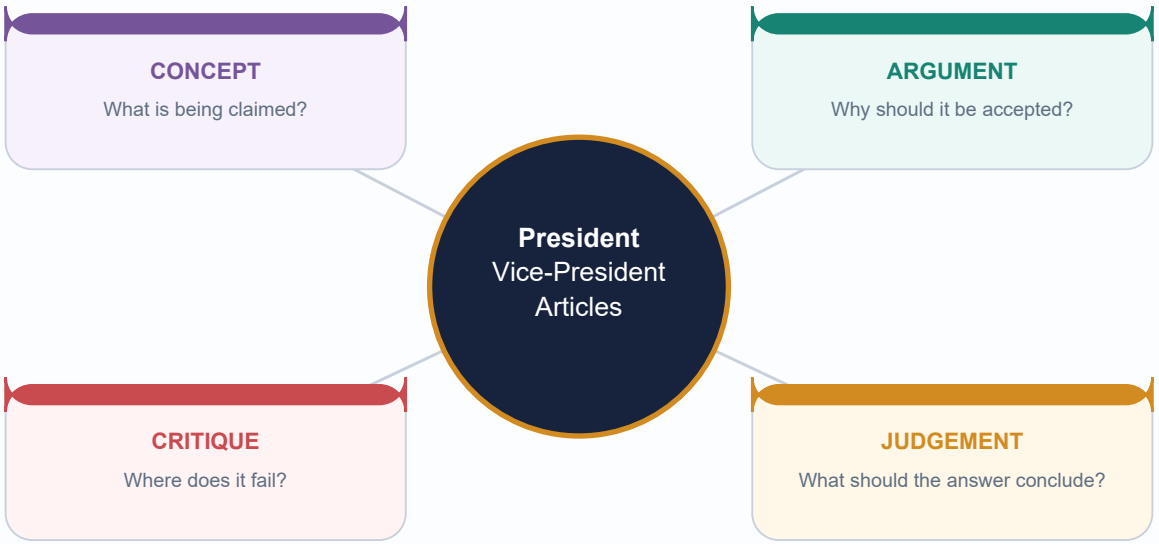
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: President-and-Vice-President.md + 15_President-and-Vice-President.md

Learning cards: 59



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Basic (foundation) · GS Paper: GS-II	**Dimension 2** Grounded in: Laxmikant Ch. 17–18. □ = from book · □□ = case law · □ = current affairs.
Dimension 3 Advanced: optional deeper detail in advanced/15President-and-Vice-President.md — not required for any mark.	

STATIC THEORY

- **Grounded in:** Laxmikant Ch. 17–18. □ = from book · □□ = case law · □ = current affairs.

- *Advanced: optional deeper detail in advanced/15_President-and-Vice-President.md — not required for any mark.*

MUST-KNOW FACTS

1. Grounded in: Laxmikant Ch. 17–18. = from book · □□ = case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	President	Vice-President
□ Articles	52–62, 72	63–71
□ Electoral college	Elected MPs + elected MLAs (+Delhi/Puducherry)	**MPs only** (elected + nominated)
□ Age	**35**	**35**
□ Qualified for	**Lok Sabha**	**Rajya Sabha**
□ Removal	**Impeachment** (Art 61)	RS effective-majority resolution + LS
□ Term	5 years, any no. of re-elections	5 years

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · President — core idea

GS-II Indian Polity

INTRO & ORIGIN

□ **Nominal executive** (Ambedkar: "head of the State, not of the Executive"). Elected by **PR-STV, secret ballot**; MLA vote value uses **1971 census** (84th Amdt). □ **42nd Amdt** made CoM advice **binding**; **44th Amdt** lets him **return once**, then it's binding.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Nominal executive (Ambedkar: "head of the State, not of the Executive"). Elected by **PR-STV, secret ballot**; MLA vote value uses **1971 census** (84th Amdt). **42nd Amdt** made CoM advice **binding**; **44th Amdt** lets him **return once**, then it's binding.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → President — core idea

HIGH

Foundation · Election-law timeline

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Control	What it does
Articles 54–55, 66 and 71	Define the two electoral colleges, voting systems and Supreme Court dispute route
Presidential and Vice-Presidential Elections Act, 1952	Governs notification, nominations, scrutiny, withdrawal, poll and election petitions
Presidential and Vice-Presidential Elections Rules, 1974	Supply the operative forms, ballot and counting procedure
1997 Amendment	Raised serious-candidature thresholds to **50 proposers + 50 seconders** for President, **20 + 20** for Vice-President, and a **₹15,000** deposit for either office

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Election-law timeline

HIGH

Foundation · Election-law timeline

GS-II Indian Polity

INTRO & ORIGIN

 The Constitution creates the office and electoral design; the 1952 Act and 1974 Rules administer the election.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MEMORY HOOK

The Constitution creates the office and electoral design; the 1952 Act and 1974 Rules administer the election.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Election-law timeline

HIGH

Foundation · Impeachment (Art 61)

GS-II Indian Polity

INTRO & ORIGIN

 Only ground = **"violation of the Constitution."** Charge by **1/4 members**, passed by **2/3 of

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- total membership of BOTH Houses**.** Nominated MPs can join impeachment** (but not the election).

MEMORY HOOK

Only ground = "violation of the Constitution." Charge by 1/4 members, passed by **2/3 of

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Impeachment (Art 61)

HIGH

Foundation · Powers — 7 heads

GS-II Indian Polity

INTRO & ORIGIN

 Mnemonic: "E-L-F-J-D-M-E" = **E**xecutive · **L**egislative · **F**inancial · **J**udicial ·

Foundation learning layer: concepts → constitutional detail → UPSC application.

POWERS — 7 HEADS: RECALL MAP

Powers — 7 heads

V

Dimension 1 Mnemonic: "E-L-F-J-D-M-E" = Executive · Legislative · Financial · Judicial ·	**Dimension 2** Diplomatic · Military · Emergency. Nominates 12 Rajya Sabha members; Supreme
Dimension 3 Commander of armed forces.	

STATIC THEORY

- **D**iplomatic · **M**ilitary · **E**mergency. Nominates **12 Rajya Sabha** members; **Supreme

- Commander** of armed forces.

MEMORY HOOK

Mnemonic: "E-L-F-J-D-M-E" = Executive · Legislative · Financial · Judicial ·

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Powers — 7 heads

HIGH

Foundation · Veto (Art 111)

GS-II Indian Polity

INTRO & ORIGIN

 President has **Absolute, Suspensive, Pocket** vetoes — **NO qualified veto** (that's the US President). **Pocket veto example: Zail Singh — Indian Post Office Bill (1986).** **Must assent** to a constitutional amendment bill (24th Amdt).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President has **Absolute, Suspensive, Pocket** vetoes — **NO qualified veto** (that's the US President). **Pocket veto example: Zail Singh — Indian Post Office Bill (1986). Must assent** to a constitutional amendment bill (24th Amdt).

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Veto (Art 111)

HIGH

Foundation · Ordinance (Art 123) & Pardon (Art 72)

GS-II Indian Polity

INTRO & ORIGIN

 Ordinance only when a House is **not in session**; lapses **6 weeks** after reassembly; **can't amend Constitution**. Only the **President** (not Governor) can pardon a **death sentence** or a **court-martial** sentence.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Ordinance only when a House is **not in session**; lapses **6 weeks** after reassembly; **can't amend Constitution**. Only the **President** (not Governor) can pardon a **death sentence** or a **court-martial** sentence.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Ordinance (Art 123) & Pardon (Art 72)

HIGH

Foundation · Vice-President

GS-II Indian Polity

INTRO & ORIGIN

 Ex-officio Chairman of Rajya Sabha; **acts as President for max 6 months** on a vacancy. Unlike the **US VP**, does **not** take over for the full unexpired term. Removal resolution starts **only in Rajya Sabha**; **no ground needed**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Ex-officio Chairman of Rajya Sabha; **acts as President for max 6 months** on a vacancy. Unlike the **US VP**, does **not** take over for the full unexpired term. Removal resolution starts **only in Rajya Sabha**; **no ground needed**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Vice-President

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

 President's oath → by **CJI**; VP's oath → by **President**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 President's oath → by CJI; VP's oath → by President.	**Dimension 2** Only Dr. Rajendra Prasad served two full presidential terms.
Dimension 3 D.C. Wadhwa (1987): re-promulgating ordinances = "fraud on the Constitution."	

STATIC THEORY

- Only **Dr. Rajendra Prasad** served two full presidential terms.

- *D.C. Wadhwa (1987):* re-promulgating ordinances = "fraud on the Constitution."

MUST-KNOW FACTS

1. President's oath → by **CJI**; VP's oath → by **President**.

2. Only **Dr. Rajendra Prasad** served two full presidential terms.

3. *D.C. Wadhwa (1987):* re-promulgating ordinances = "fraud on the Constitution."

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · Current link

GS-II Indian Polity

NEWS TRIGGER

  Current Art 200/201 position (20 Nov 2025 Article 143 opinion; checked 28 Aug 2026): courts cannot create rigid timelines or automatic deemed assent, but prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial review and mandamus. **Vice-Presidential transition (2025):** after Jagdeep Dhankhar's resignation, C. P. Radhakrishnan was elected on 9 September 2025 and entered office on 12 September This illustrates Article 68's distinct rule: a casual Vice-Presidential vacancy is filled **as soon as possible**, not within the President's six-month deadline, and the successor receives a fresh five-year term. **Office control (checked 28 Aug 2026):** Droupadi Murmu remains President and C. P. Radhakrishnan remains Vice-President, according to their official constitutional-office profiles.

INTRO & ORIGIN

□□ The full powers, the veto tables, the ordinance limits and the President-VP contrast are held **in this file**. *Advanced: optional deeper detail in advanced/15_President-and-Vice-President.md — not required for any mark.*

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Purpose: make this Core file independently answer directive-sensitive GS-II questions on the President's election, discretion, veto, ordinance and pardon powers, and on the Vice-President as Chairman of the Rajya Sabha — without opening Advanced. The office is nominal in form but discretionary at the margins; every strong answer turns on that gap between text and practice.

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 10.0 Direct Mains demands owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 10.0 Direct Mains demands owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

2022 · GS-II · Q4 *— Demand (neutral rendering): the role of the Vice-President as Chairman of the Rajya Sabha. Directive:* ***Discuss · 10 marks · 150 words****.* ***Core routing supersedes the older advanced/15_President-and-Vice-President.md pointer for this demand. Executable route:*** *(1)* ***Thesis*** *— the VP's substantive day-to-day constitutional role is as* ***ex-officio Chairman of the Rajya Sabha (Art 64)****, a non-member presiding officer who guards the House's order; the office matters more as Chairman than as President-in-waiting. (2)* ***Constitutional basis*** *— Art 64 (ex-officio Chairman); Art 89 (Deputy Chairman presides in his absence);* ***Art 100*** *(no vote in the first instance but a* ***casting vote*** *in a tie);* ***Art 92*** *(must* ***not preside*** *while a resolution for his own removal is under consideration — may speak, not vote). (3)* ***Powers*** *— presides, maintains order, decides points of order and admissibility, interprets rules, refers matters to committees, and acts as the* ***Tenth Schedule disqualification tribunal for Rajya Sabha members*** *(para 6). (4)* ***Distinction from the Speaker*** *— the Chairman is* ***not a member*** *of the House he presides over (the Speaker is), and he does* ***not certify Money Bills*** *(that is the Lok Sabha Speaker's power, Art 110). (5)* ***Analytical tension*** *— because the RS represents the States, the Chairman anchors federal deliberation; but being an elected political figure his* ***neutrality is contested*** *(disputed rulings, disruptions, anti-defection references reviewable after Kihoto Hollohan 1992). (6)* ***Verdict*** *— the Chairmanship is the VP's real constitutional workload, and its authority rests on perceived impartiality, not on formal powers alone.* ***2025 · GS-II · Q3*** *— Demand (neutral rendering): compare and contrast the President's power to pardon in India and the USA, the limits in both, and the meaning of 'preemptive pardons'. Directive:* ***Compare and contrast · 10 marks · 150 words****. This file* ***owns the Indian half in full****; the comparative frame and the US Article II side are completed in basic/Comparative-Constitutional-Schemes.md §10.* ***Core routing supersedes the older advanced/15_President-and-Vice-President.md pointer for this demand. Executable route (Indian half):*** *(1)* ***Scope*** *—* ***Art 72*** *covers pardon, reprieve, respite, remission and commutation, and uniquely reaches* ***court-martial sentences and death sentences*** *(the Governor's Art 161 reaches neither). (2)* ***Who really decides*** *— exercised on the* ***binding advice of the Council of Ministers****, not the President's personal will (Maru Ram 1980). (3)* ***Independent application of mind*** *— the President may examine the case afresh and take a view different from the courts (Kehar Singh 1989). (4)* ***Limits/review*** *— clemency is subject to* ***limited judicial review*** *for mala fides, non-application of mind, or extraneous/withheld material (Epuru Sudhakar 2006). (5)* ***Comparative hinge*** *— hand off to the comparative file for US Art II (a personal executive power over federal offences, barred for impeachment and state offences) and for* ***pre-emptive pardons*** *(pardon of completed conduct before charge/conviction, never of future acts). (6)* ***Verdict*** *— both are executive graces bounded by law, but India's is a ministerially-advised, judicially-reviewable power while the US President's is a personal one.* ***2022 · GS-II · Q14*** *(Presidents of India and France, election procedures) is routed to the comparative owner; use §10.4 here only for the* ***Indian PR-STV mechanism*** *and cross-link basic/Comparative-Constitutional-Schemes.md for the French half.*

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.0 Direct Mains demands owned by this Core file

HIGH

Foundation · 10.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Nominal executive vs real discretion	"rubber stamp", "figurehead", Critically examine	Art 53/74 nominal role → 42nd/44th Amdt → situational-discretion instances → bounded-discretion verdict
Veto and assent	"options before the President", "pocket veto", Examine	Art 111 three vetoes → named instances → Art 201 state bills → no-time-limit caution
Ordinance power	"executive legislation", *D.C. Wadhwa*, Discuss	Art 123 limits → *Cooper/Wadhwa/Krishna Kumar Singh* → laid-before-Parliament rule → separation-of-powers verdict
Pardon power	"clemency", India–US compare, Compare and contrast	Art 72 scope → advice (*Maru Ram*) → review (*Epuru Sudhakar*) → Art 161 contrast
Election / electoral college	"vote value", "electoral college", Prelims + Examine	Art 54–55 PR-STV → college composition → 1971-census value → SC dispute jurisdiction
Vice-President / Chairman RS	"role of VP", "presiding officer", Discuss	Art 63–71 office → Art 64/100/92 Chairman → Speaker contrast → impartiality verdict

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.1 Demand and directive map

HIGH

Foundation · 10.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The President is a nominal executive by design but not a nullity: the 42nd and 44th Amendments made ministerial advice binding, yet left a residue of situational discretion that becomes decisive precisely when the party system fails to deliver a clear majority.

Foundation learning layer: concepts → constitutional detail → UPSC application.

10.2 QUALIFIED THESIS OPTIONS: RECALL MAP

10.2 Qualified thesis options

V

Dimension 1 The President is a nominal executive by design but not a nullity: the 42nd and 44th Amendments made ministerial advice binding, yet left a residue of	**Dimension 2** India's ordinance power is a legislative convenience that repeatedly tempts executive excess; the judiciary has responded not by abolishing it but by
Dimension 3 The pardon power shows the difference between the Indian and American presidencies in miniature — the same clemency word conceals a ministerially-advi	**Dimension 4** The Vice-Presidency is constitutionally a standby office but functionally a presiding office; its significance is measured on the floor of the Rajya S

STATIC THEORY

- India's ordinance power is a legislative convenience that repeatedly tempts executive excess; the judiciary has responded not by abolishing it but by fencing it with the laying requirement and the anti-re-promulgation rule, so the real question is enforcement, not existence.

- The pardon power shows the difference between the Indian and American presidencies in miniature — the same clemency word conceals a ministerially-advised, reviewable Indian power and a personal, near-unreviewable American one.

- The Vice-Presidency is constitutionally a standby office but functionally a presiding office; its significance is measured on the floor of the Rajya Sabha, where the test is impartiality, not in the rare contingency of acting as President.

- Every discretionary space the President or Governor occupies is now shadowed by judicial review, so the modern constitutional question is no longer "can he refuse?" but "on what reviewable grounds, and within what time?".

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.2 Qualified thesis options

HIGH

Foundation · 10.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → one power's mechanism → one named instance/case → one limitation → verdict	2–3 units, at least one Article + one case
15	Thesis → provision → discretion/limits → named instances → counter/criticism → qualified verdict	5–6 units
20	Thesis → constitutional design (Art 53/74) → the specific power in full → case-law limits → discretion instances → comparison or reform debate → graded verdict	6–8 units + a text-vs-practice paragraph

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.3 Mark-scaled structures

HIGH

Foundation · 10.4 Bank A — Election and constitutional position

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Claim	Named anchor	Mechanism / significance	Limitation / caution
The President is indirectly elected to keep the office symbolic	□ **Art 54–55**	Electoral college of **elected MPs + elected MLAs + elected Delhi & Puducherry MLAs** (70th Amdt 1992); **PR-STV, secret ballot**; winner needs the quota	**Nominated members and MLCs do not vote**; direct election was rejected as costly for a nominal head
Vote values are weighted for Centre–State parity	□ **Art 55**	**MLA value = (State population ÷ elected MLAs) ÷ 1000** on the **1971 census**; **MP value = total MLA votes ÷ elected MPs of both Houses**	Frozen to the 1971 census until the first census after 2026 is published (**84th Amdt 2001**); disputes go to the **Supreme Court** (Art 71)
The President heads the State, not the executive	□ **Art 53 / Ambedkar**	All Union executive action is in his name; he is the constitutional symbol of the nation	He acts through the CoM; the PM is the real executive
Ministerial advice binds, with one pause	□ **42nd Amdt (1976), 44th Amdt (1978)**	42nd made **advice binding**; 44th lets him **return advice once**, after which it binds	Used by **K.R. Narayanan** (UP 1997, Bihar 1998 President's-Rule reconsideration)
Discretion survives at the political margins	□□ **situational (not constitutional) discretion**	Appointing a PM in a **hung Lok Sabha**; dismissing a CoM that cannot prove confidence; dissolving the LS when the CoM has lost majority	These are *situational*; the President has **no enumerated constitutional discretion** (unlike the Governor)

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.4 Bank A — Election and constitutional position

HIGH

Foundation · 10.4 Bank A — Election and constitutional position

GS-II Indian Polity

INTRO & ORIGIN

Impeachment (Art 61): □ the only ground is **"violation of the Constitution"** (undefined); charge by **1/4 of the members** of either House, **14 days' notice**, passed by **2/3 of the total membership** of each House; **nominated MPs may participate** (they cannot vote in the election), **State MLAs cannot** (they vote in the election). No President has been impeached.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Impeachment (Art 61): the only ground is **"violation of the Constitution"** (undefined); charge by **1/4 of the members** of either House, **14 days' notice**, passed by **2/3 of the total membership** of each House; **nominated MPs may participate** (they cannot vote in the election), **State MLAs cannot** (they vote in the election). No President has been impeached.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.4 Bank A — Election and constitutional position

HIGH

Foundation · 10.5 Bank B — Veto and ordinance (the executive–legislative interface)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Instrument	Named anchor	Mechanism	Limitation / instance
Absolute veto	Art 111	Withholds assent; the bill dies	Rajendra Prasad — **PEPSU Appropriation Bill (1954)**; Venkataraman — **MP Salary Bill (1991)**
Suspensive veto	Art 111	Returns a bill; Parliament overrides by an **ordinary** majority	Does **not** apply to Money Bills
Pocket veto	Art 111 (no time-limit)	Sits on the bill indefinitely — the Constitution sets **no time-limit** for assent	Zail Singh — **Indian Post Office (Amendment) Bill, 1986**
No veto on a constitutional amendment	**24th Amdt (1971)**	Assent to a constitutional amendment bill is **obligatory**	—
State bills reserved (Art 201)	Art 201	On a bill reserved by a Governor: assent / withhold / direct return	**Not bound to assent even if the State legislature re-passes it**; may also pocket veto
Ordinance (Art 123)	Art 123	Temporary law with the force of an Act, only when **a House is not in session**; **laid before Parliament** and **ceases six weeks** after reassembly (max ≈ 6 months + 6 weeks)	**Cannot amend the Constitution** and **cannot abridge Fundamental Rights**; can be retrospective and can amend/repeal a Central Act

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.5 Bank B — Veto and ordinance (the executive–legislative interface)

HIGH

Foundation · 10.5 Bank B — Veto and ordinance (the executive–legislative interface)

GS-II Indian Polity

INTRO & ORIGIN

Ordinance case-law spine: *R.C. Cooper (1970)* — the President's satisfaction is **justiciable on mala fide** grounds; *D.C. Wadhwa (1987)* — **re-promulgation** of ordinances is a **"fraud on the Constitution"**; *Krishna Kumar Singh v. State of Bihar (2017)* (**seven-judge Bench, 5:2**) reaffirmed *Wadhwa*, held that **laying the ordinance before the legislature is mandatory** (Art 123(2)/213(2)) and that the ordinance-making satisfaction is **judicially reviewable**; ordinances do not automatically create enduring rights.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **Analytical use:** the veto and ordinance banks together answer any "executive legislation / executive overreach" demand — the powers exist, but the *laying* requirement and the *anti-re-promulgation* rule are the constitutional brakes.

MUST-KNOW FACTS

1. Ordinance case-law spine: *R.C. Cooper (1970)* — the President's satisfaction is **justiciable on mala fide** grounds; *D.C. Wadhwa (1987)* — **re-promulgation** of ordinances is a **"fraud on the Constitution"**; *Krishna Kumar Singh v. State of Bihar (2017)* (**seven-judge Bench, 5:2**) reaffirmed *Wadhwa*, held that **laying the ordinance before the legislature is mandatory** (Art 123(2)/213(2)) and that the ordinance-making satisfaction is **judicially reviewable**; ordinances do not automatically create enduring rights.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.5 Bank B — Veto and ordinance (the executive–legislative interface)

HIGH

Foundation · 10.6 Bank C — Pardon power (Art 72) and the Art 161 contrast

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Point	President (Art 72)	Governor (Art 161)
□ Pardon a **death** sentence	**Yes**	**No** (may only suspend/remit/commute)
□ **Court-martial** sentences	**Yes**	**No**
□ Advice	Binding Cabinet advice	Binding State-CoM advice

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.6 Bank C — Pardon power (Art 72) and the Art 161 contrast

HIGH

Foundation · 10.6 Bank C — Pardon power (Art 72) and the Art 161 contrast

GS-II Indian Polity

INTRO & ORIGIN

Claim: the pardon power is an executive grace bounded by advice and review. **Provision:** □ **Art 72** — pardon, reprieve, respite, remission, commutation. **Mechanism:** □ uniquely reaches **court-martial** and **death** sentences; exercised on the **Cabinet's binding advice** (*Maru Ram* 1980); the President may reappraise the case (*Kehar Singh* 1989). **Limitation:** □ subject to **limited judicial review** for mala fides, non-application of mind, or irrelevant/withheld material (*Epuru Sudhakar* 2006).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Claim: the pardon power is an executive grace bounded by advice and review. **Provision: Art 72** — pardon, reprieve, respite, remission, commutation. **Mechanism:** uniquely reaches **court-martial** and **death** sentences; exercised on the **Cabinet's binding advice** (*Maru Ram* 1980); the President may reappraise the case (*Kehar Singh* 1989). **Limitation:** subject to **limited judicial review** for mala fides, non-application of mind, or irrelevant/withheld material (*Epuru Sudhakar* 2006).

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.6 Bank C — Pardon power (Art 72) and the Art 161 contrast

HIGH

Foundation · 10.7 Bank D — Vice-President and the Chairmanship of the Rajya Sabha

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Claim	Named anchor	Mechanism / significance	Limitation / caution
The VP is elected on a narrower base than the President	□ **Art 66**	Electoral college = **both Houses of Parliament only** (elected **and** nominated members), **excludes State MLAs**; PR-STV, secret ballot	The reverse of the President, whose college **includes** MLAs and **excludes** nominated members
The VP's substantive role is presiding, not succession	□ **Art 64**	**Ex-officio Chairman of the Rajya Sabha**; Art 89 Deputy Chairman presides in absence	He is **not a member** of the RS (unlike the Speaker, who is a member of the LS)
The Chairman shapes outcomes only in a tie	□ **Art 100**	No vote in the first instance; a **casting vote** when votes are equal	—
The Chairman is insulated when his own seat is at issue	□ **Art 92**	While a resolution for his removal is under consideration he **shall not preside**; may speak and take part but **not vote**	—
The Chairman is a quasi-judicial tribunal for defection	□ **Tenth Schedule, para 6**	Decides disqualification of **RS members** under the anti-defection law	□ his decision is **subject to judicial review** (*Kihoto Hollohan* 1992)
The VP acts as President only briefly	□ **Art 65**	Acts as President on a vacancy for a **maximum of six months**	Unlike the **US VP**, he does **not** serve the unexpired term
Removal is a Council-of-States-initiated process	□ **Art 67(b)**	Resolution by an **effective majority of the Rajya Sabha**, agreed by the **Lok Sabha**; **can be initiated only in the RS**; **no ground required**	Not the presidential "impeachment" procedure

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.7 Bank D — Vice-President and the Chairmanship of the Rajya Sabha

HIGH

Foundation · 10.7 Bank D — Vice-President and the Chairmanship of the Rajya Sabha

GS-II Indian Polity

INTRO & ORIGIN

Oaths: □ the President's oath is by the **CJI (Art 60)**; the VP's oath is by the **President (Art 69)**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Oaths: the President's oath is by the **CJI (Art 60)**; the VP's oath is by the **President (Art 69)**.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.7 Bank D — Vice-President and the Chairmanship of the Rajya Sabha

HIGH

Foundation · 10.8 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **Why the office is nominal yet contested:** the binding-advice rule (42nd/44th Amdts) reduces the President to a constitutional formality *in normal politics*, but the **situational-discretion residue** gives the office real leverage exactly when coalitions fragment — the incentive to invoke discretion rises as majorities shrink.

Foundation learning layer: concepts → constitutional detail → UPSC application.

10.8 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

10.8 Mechanism, institutional incentives and consequences

V

Dimension 1 □□ Why the office is nominal yet contested: the binding-advice rule (42nd/44th Amdts) reduces the President to a constitutional formality in normal po	**Dimension 2** □□ Why ordinances recur: the ordinance route lets the executive legislate without immediate legislative scrutiny; the institutional incentive to re-pr
Dimension 3 □□ Why the Chairmanship is politically sensitive: the Chairman is an elected political figure presiding over the federal House; his rulings on admissi	

STATIC THEORY

- □□ **Why ordinances recur:** the ordinance route lets the executive legislate without immediate legislative scrutiny; the institutional incentive to **re-promulgate** is strongest where a government lacks an upper-House majority, which is precisely why *Wadhwa* and *Krishna Kumar Singh* had to make **laying-before-the-legislature mandatory**.

- □□ **Why the Chairmanship is politically sensitive:** the Chairman is an elected political figure presiding over the federal House; his rulings on admissibility, disruption and defection references convert a ceremonial chair into a site of majority–opposition conflict.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.8 Mechanism, institutional incentives and consequences

HIGH

Foundation · 10.9 Criticism, counter-argument and variation

GS-II Indian Polity

INTRO & ORIGIN

"Rubber-stamp" critique: □□ post-42nd Amdt the President cannot resist a determined Cabinet; the return-once power (44th Amdt) is a speed-bump, not a veto.

Foundation learning layer: concepts → constitutional detail → UPSC application.

10.9 CRITICISM, COUNTER-ARGUMENT AND VARIATION: RECALL MAP

10.9 Criticism, counter-argument and variation

V

Dimension 1 "Rubber-stamp" critique: □□ post-42nd Amdt the President cannot resist a determined Cabinet; the return-once power (44th Amdt) is a speed-bump, not a	**Dimension 2** Counter (the office bites at the margins): □□ hung-house PM selection, President's-Rule reconsideration (Narayanan) and mercy-petition delays show the
Dimension 3 Federal variation: □□ the President–Governor asymmetry is deliberate — the President has no enumerated discretion while the Governor does (Art 163), w	**Dimension 4** Implementation constraint: □□ judicial limits on ordinances and mercy delays depend on litigation reaching the Court; between promulgation and petitio

STATIC THEORY

- **Counter (the office bites at the margins):** □□ hung-house PM selection, President's-Rule reconsideration (Narayanan) and mercy-petition delays show the office is consequential in abnormal politics.

- **Federal variation:** □□ the President–Governor asymmetry is deliberate — the President has **no enumerated discretion** while the Governor does (Art 163), which is why Centre–State friction attaches to Raj Bhavan, not Rashtrapati Bhavan.

- **Implementation constraint:** □□ judicial limits on ordinances and mercy delays depend on litigation reaching the Court; between promulgation and petition, executive advantage persists.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.9 Criticism, counter-argument and variation

HIGH

Foundation · 10.10 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Nominal-executive verdict: "The President is a nominal executive whose discretion is dormant in normal politics and decisive in abnormal politics; the 44th Amendment tamed the office without emptying it."

Foundation learning layer: concepts → constitutional detail → UPSC application.

10.10 VERDICT SCAFFOLDS: RECALL MAP

10.10 Verdict scaffolds

V

Dimension 1 Nominal-executive verdict: "The President is a nominal executive whose discretion is dormant in normal politics and decisive in abnormal politics; the	**Dimension 2** Ordinance verdict: "The ordinance power survives because it is useful and is disciplined because it is abused; Krishna Kumar Singh completed what Wadh
Dimension 3 Pardon verdict: "Clemency in India is neither royal mercy nor personal fiat: it is ministerial advice exercised under the shadow of Epuru Sudhakar rev	**Dimension 4** Vice-President verdict: "The Vice-Presidency earns its constitutional keep in the Chair of the Rajya Sabha, where impartiality — not the six-month act

STATIC THEORY

- **Ordinance verdict:** "The ordinance power survives because it is useful and is disciplined because it is abused; *Krishna Kumar Singh* completed what *Wadhwa* began by making legislative laying non-negotiable."

- **Pardon verdict:** "Clemency in India is neither royal mercy nor personal fiat: it is ministerial advice exercised under the shadow of *Epuru Sudhakar* review."

- **Vice-President verdict:** "The Vice-Presidency earns its constitutional keep in the Chair of the Rajya Sabha, where impartiality — not the six-month acting contingency — is the true measure of the office."

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.10 Verdict scaffolds

HIGH

Foundation · 10.11 Prelims close-option distinctions

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair / routed demand	Correct discrimination
Ordinance vs Act (2025 Q51)	□ An ordinance **can amend/repeal a Central Act** and **can be retrospective**, but **cannot abridge a Fundamental Right** and **cannot amend the Constitution**
Pardon — advice and review (2025 Q86)	□ Exercised on **binding ministerial advice** (*Maru Ram*); **subject to limited judicial review** (*Kehar Singh*, *Epuru Sudhakar*) — not the President's unreviewable personal will
Vote values of MLAs and MPs (2018 Q32, 2023 Q80)	□ MLA value = (State population ÷ elected MLAs) ÷ 1000 on the **1971 census**; MP value = total MLA votes ÷ elected MPs of **both Houses**
Election declared void + assent time-limit (2023 Q36)	□ Acts done by the President **before** his election is declared void are **not invalidated** (Art 71(2)); the Constitution prescribes **no time-limit** for presidential assent (the basis of the pocket veto)
Presidential vs VP electoral college	President = elected MPs **+ MLAs**, nominated excluded; VP = **MPs only** (elected + nominated), MLAs excluded
Impeachment vs VP removal	President impeached by **2/3 of total membership** of both Houses (nominated MPs vote, MLAs do not); VP removed by an **RS effective-majority resolution + LS**, initiated **only in the RS**, no ground
Who administers the oath	President's oath by the **CJI**; VP's oath by the **President**
Chairman vs Speaker	The Chairman is **not a member** of the RS and **does not certify Money Bills**; the Speaker is a member of the LS and certifies Money Bills (Art 110)

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.11 Prelims close-option distinctions

HIGH

Foundation · 10.12 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

□ **Qualified veto = US President only**; the Indian President has **absolute/suspensive/pocket** vetoes. □ **Art 72 (President)** reaches death and court-martial sentences; **Art 161 (Governor)** reaches neither — never merge them. □ The pocket veto works because **no time-limit** is prescribed for assent; do not invent one.

INTRO & ORIGIN

□□ Do not overstate bench strengths; where certain, state them (*Krishna Kumar Singh* = seven judges, 5:2).

Foundation learning layer: concepts → constitutional detail → UPSC application.

10.12 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

10.12 Factual-risk and current-status controls

V

Dimension 1 □□ Do not overstate bench strengths; where certain, state them (Krishna Kumar Singh = seven judges, 5:2).	**Dimension 2** □□ Case law is a proposition, not a name-drop: Maru Ram = advice; Kehar Singh = independent reappraisal + reviewability; Epuru Sudhakar = grounds of r
Dimension 3 □ Assent by Governors/President (Art 200/201): the five-judge Article 143 opinion of 20 Nov 2025 held that courts cannot fix rigid timelines or automa	**Dimension 4** □ Do not claim any President has been impeached (none has); do not claim the VP takes the unexpired presidential term (he only acts, max six months).

STATIC THEORY

- □□ Case law is a **proposition, not a name-drop**: *Maru Ram* = advice; *Kehar Singh* = independent reappraisal + reviewability; *Epuru Sudhakar* = grounds of review; *Wadhwa*/*Krishna Kumar Singh* = anti-re-promulgation and mandatory laying.

- □ **Assent by Governors/President (Art 200/201):** the five-judge **Article 143 opinion of 20 Nov 2025** held that courts cannot fix rigid timelines or automatic deemed assent, while prolonged, unexplained inaction remains open to limited judicial review — verify the latest status before dating any answer.

- □ Do not claim any President has been impeached (none has); do not claim the VP takes the unexpired presidential term (he only **acts**, max six months).

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 -→

MUST-KNOW FACTS

1. Do not claim any President has been impeached (none has); do not claim the VP takes the unexpired presidential term (he only **acts**, max six months).

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → 10.12 Factual-risk and current-status controls

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2025	GS-II	3	President's power to pardon in India and USA; preemptive pardons	Compare and contrast · 10 marks · 150 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2025	Prelims GS-I	51	Ordinances - amending a Central Act, abridging a Fundamental Right, retrospective effect	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.
2025	Prelims GS-I	86	President's pardoning power - review and advice	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Recent PYQ Integration (2024-2025).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *2024-2025 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2024-2025.md, _PYQ-ROUTING-PRELIMS-2024-2025.md.* ***Answer-key rule:*** *The official 2024-2025 Prelims Set-A keys are present in the repository and CSAT Set-A keys are supplied; even so, no option or answer is recorded or inferred in this integration.* ***Years represented:*** *2025* ***Paper(s):*** *GS-II, Prelims GS-I* ***Routed question demands:*** *3*

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

President's power to pardon in India and USA; preemptive pardons

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 President's power to pardon in India and USA; preemptive pardons	**Dimension 2** Ordinances - amending a Central Act, abridging a Fundamental Right, retrospective effect
Dimension 3 President's pardoning power - review and advice	**Dimension 4** This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed

STATIC THEORY

- Ordinances - amending a Central Act, abridging a Fundamental Right, retrospective effect

- President's pardoning power - review and advice

- This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed/answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -→

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	Prelims GS-I	32	President of India election vote values for MLAs and MPs	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2023	Prelims GS-I	36	Presidential election void declaration assent time limits	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2023	Prelims GS-I	80	Presidential election Electoral College MLA vote value calculation	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2018, 2023* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *3*

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

President of India election vote values for MLAs and MPs

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 President of India election vote values for MLAs and MPs	**Dimension 2** Presidential election void declaration assent time limits
Dimension 3 Presidential election Electoral College MLA vote value calculation	**Dimension 4** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl

STATIC THEORY

- Presidential election void declaration assent time limits

- Presidential election Electoral College MLA vote value calculation

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Office map: *Articles 52-62 govern the President's office/election/term and Article 61 impeachment; Articles 63-71 govern the Vice-President, with Article 71 giving the Supreme Court final jurisdiction over both elections. Articles 72-73 then address clemency and Union executive extent.* ***Electoral colleges:*** *Article 54 includes elected MPs and elected MLAs of the States plus Delhi and Puducherry; nominated members and Legislative-Council members do not vote. Article 66 includes elected and nominated members of both Houses but no State legislators.* ***Vote and vacancy:*** *Article 55 vote values and PR-STV/secret ballot apply to the President; the Vice-President uses PR-STV/secret ballot without MLA vote values. Articles 62 and 68 impose different vacancy schedules.* ***Removal:*** *Article 61 impeachment for constitutional violation may begin in either House after fourteen days' notice signed by at least one-fourth and needs two-thirds of total membership in each House. Article 67(b) Vice-Presidential removal begins only in Rajya Sabha, uses an effective-majority resolution agreed to by Lok Sabha, and also requires fourteen days' notice.* ***Aid and advice:*** *Article 74 advice binds after one reconsideration. Situational discretion in appointing a Prime Minister, seeking proof of confidence or exploring alternatives is bounded by responsible-government conventions and cannot become personal presidential rule.* ***Veto and reserved Bills:*** *Article 111 assent/withholding/return applies to Parliamentary Bills, with no return of a Money Bill. Article 201 is a separate reserved-State-Bill route governed by the 20 November 2025 Article 143 opinion; it has no judicially fixed deadline or deemed assent.* ***Ordinance:*** *Article 123 requires both Houses not to be in session, has the force of an Act, must stay within legislative/rights limits, and ceases six weeks after reassembly unless earlier withdrawn/disapproved. D.C. Wadhwa and Krishna Kumar Singh reject routine re-promulgation.* ***Clemency:*** *Article 72 covers Union-law offences, court-martial and death sentences; Article 161 tracks State executive competence and cannot pardon a court-martial or death sentence. Maru Ram, Kehar Singh and Epuru Sudhakar preserve ministerial advice and limited review for mala fides, arbitrariness or irrelevant considerations.* ***Current offices:*** *Droupadi Murmu remains President. C. P. Radhakrishnan was elected Vice-President on 9 September 2025 and assumed office on 12 September 2025 after the casual vacancy; Article 68 requires filling it as soon as possible, not within an invented six-month deadline.* ***Four-ledger/PYQ control:*** *exact Articles, electoral law, vote arithmetic, conventions, cases, current officeholders and all routed 2018-2025 demands were reconciled; detailed PM/CoM, Parliament and Governor doctrine remains cross-owned.*

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE →
Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 17–18 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/President-and-Vice-President.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 17–18 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/President-and-Vice-President.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — THE PRESIDENT (Art 52–62, 72, 74)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE PRESIDENT (Art 52–62, 72, 74).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → PART A — THE PRESIDENT (Art 52–62, 72, 74)

HIGH

Advanced · Election (Art 54–55) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Indirect** election by an **electoral college** = **elected** members of both Houses of Parliament + **elected** members of state legislative assemblies + **elected** members of **Delhi & Puducherry** assemblies (added by **70th Amdt 1992**). **Nominated members and MLCs do NOT vote.** □ System: **proportional representation by single transferable vote, secret ballot** → winner needs an **absolute majority (quota)**. □ Value of an MLA's vote uses **1971 census population** until relevant figures of the **first census taken after 2026 have been published** (84th Amdt 2001). Disputes → **Supreme Court** (final). □ Indirect election chosen because President is a **nominal executive** and direct election would be costly for a symbolic head.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Indirect election by an **electoral college** = **elected** members of both Houses of Parliament + **elected** members of state legislative assemblies + **elected** members of **Delhi & Puducherry** assemblies (added by **70th Amdt 1992**). **Nominated members and MLCs do NOT vote.** System: **proportional representation by single transferable vote, secret ballot** → winner needs an **absolute majority (quota)**. Value of an MLA's vote uses **1971 census population** until relevant figures of the **first census taken after 2026 have been published** (84th Amdt 2001). Disputes → **Supreme Court** (final). Indirect election chosen because President is a **nominal executive** and direct election would be costly for a symbolic head.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Election (Art 54–55) □

HIGH

Advanced · Qualifications, oath, conditions

GS-II Indian Polity

INTRO & ORIGIN

□ Citizen of India · **35 years** · qualified for **Lok Sabha** · no office of profit. Nomination: **50 proposers + 50 seconders**, deposit **₹15,000** (forfeited if less than 1/6 votes). □ Oath administered by **CJI** (or senior-most SC judge). Immune from criminal proceedings during term; civil proceedings only after **2 months' notice**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Citizen of India · **35 years** · qualified for **Lok Sabha** · no office of profit. Nomination: **50 proposers + 50 seconders**, deposit **₹15,000** (forfeited if less than 1/6 votes). Oath administered by **CJI** (or senior-most SC judge). Immune from criminal proceedings during term; civil proceedings only after **2 months' notice**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Qualifications, oath, conditions

HIGH

Advanced · Term, impeachment, vacancy □

GS-II Indian Polity

INTRO & ORIGIN

□ **5-year** term; resigns to **Vice-President**; eligible for **any number of re-elections** (US = max twice). □ **Impeachment (Art 61)** — only ground = **"violation of the Constitution"** (undefined). Charge by **1/4 members** of either House, **14 days' notice**, passed by **2/3 of total membership** of both Houses. □ **Nominated members CAN participate in impeachment** (though not in election); **state MLAs CANNOT** (though they vote in election). No President impeached so far. □ **Vacancy:** if term expires, outgoing President continues till successor takes charge (no interregnum, VP does not act). If death/resignation/removal → VP acts, election within **6 months**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 5-year term; resigns to **Vice-President**; eligible for **any number of re-elections** (US = max twice). **Impeachment (Art 61)** — only ground = **"violation of the Constitution"** (undefined). Charge by **1/4 members** of either House, **14 days' notice**, passed by **2/3 of total membership** of both Houses. □ **Nominated members CAN participate in impeachment** (though not in election); **state MLAs CANNOT** (though they vote in election). No President impeached so far. **Vacancy:** if term expires, outgoing President continues till successor takes charge (no interregnum, VP does not act). If death/resignation/removal → VP acts, election within **6 months**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Term, impeachment, vacancy □

HIGH

Advanced · Powers & functions □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Highlights
□ **Executive**	All Union executive action in his name; appoints PM, ministers, AG, CAG, CEC & ECs, UPSC, Governors, Finance Commission
□ **Legislative**	Summon/prorogue Parliament, dissolve LS, joint sitting; **nominates 12 RS members** (art/science/literature/social service); assent to bills; ordinances
□ **Financial**	Money bills need his prior recommendation; lays **Union Budget**; Contingency Fund advances; constitutes **Finance Commission**
□ **Judicial**	Appoints CJI/SC/HC judges; seeks SC advice (Art 143, **not binding**); **pardoning power (Art 72)**
□ **Diplomatic**	Treaties/agreements in his name (subject to Parliament)
□ **Military**	**Supreme Commander** of defence forces; appoints service chiefs
□ **Emergency**	Art 352, 356/365, 360

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Powers & functions □

HIGH

Advanced · Powers & functions □

GS-II Indian Polity

INTRO & ORIGIN

Note: **Anglo-Indian nomination (2 to LS)** lapsed via **104th Amdt (2020)**. □□

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Powers & functions □

HIGH

Advanced · Veto power (Art 111) □□

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Veto	Meaning	Example
□ **Absolute**	Withholds assent, bill dies	Rajendra Prasad — PEPSU Appropriation Bill (1954); Venkataraman — MP Salary Bill (1991)
□ **Suspensive**	Returns bill; overridden by **ordinary** majority re-passage (US needs higher)	—
□ **Pocket**	Sits on bill indefinitely (no time limit)	**Zail Singh — Indian Post Office (Amendment) Bill, 1986**

MAINS ANGLE

STUDY LINK
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Veto power (Art 111) □□

HIGH

Advanced · Veto power (Art 111) □□

GS-II Indian Polity

INTRO & ORIGIN

□ Three alternatives: assent · withhold · return (not money bill). India's President has **absolute, suspensive, pocket** vetoes — **NO qualified veto** (that's the US President).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **No veto over a constitutional amendment bill — 24th Amdt (1971)** made assent **obligatory**. □ Over **state bills reserved by Governor** (Art 201): assent / withhold / direct return — but **NOT bound** to assent even if re-passed (state legislature cannot override); can also **pocket veto**.

MUST-KNOW FACTS

1. Three alternatives: assent · withhold · return (not money bill). India's President has **absolute, suspensive, pocket** vetoes — **NO qualified veto** (that's the US President).

2. No veto over a constitutional amendment bill — 24th Amdt (1971) made assent **obligatory**. Over **state bills reserved by Governor** (Art 201): assent / withhold / direct return — but **NOT bound** to assent even if re-passed (state legislature cannot override); can also **pocket veto**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Veto power (Art 111) □□

HIGH

Advanced · Ordinance-making power (Art 123) □

GS-II Indian Polity

INTRO & ORIGIN

□ A major legislative power; ordinances = temporary laws with the force of an Act. **Limits:** (1) only when a House is **not in session**; (2) only on subjects Parliament can legislate & **cannot abridge FRs**; (3) must be laid before Parliament, **ceases 6 weeks** after reassembly (max life **≈ 6 months + 6 weeks**); (4) **cannot amend the Constitution**. □ *R. C. Cooper (1970)* — satisfaction is reviewable on limited grounds; □ *D.C. Wadhwa (1986 judgment)* — **re-promulgation** of ordinances is a "fraud on the Constitution."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. A major legislative power; ordinances = temporary laws with the force of an Act. **Limits:** (1) only when a House is **not in session**; (2) only on subjects Parliament can legislate & **cannot abridge FRs**; (3) must be laid before Parliament, **ceases 6 weeks** after reassembly (max life **≈ 6 months + 6 weeks**); (4) **cannot amend the Constitution**. *R. C. Cooper (1970)* — satisfaction is reviewable on limited grounds; *D.C. Wadhwa (1986 judgment)* — **re-promulgation** of ordinances is a "fraud on the Constitution."

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Ordinance-making power (Art 123) □

HIGH

Advanced · Pardoning power (Art 72) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Pardon, reprieve, respite, remission, commutation.** President can pardon **court-martial** sentences and **death sentences** — Governor (Art 161) **cannot** do either (but has concurrent power to suspend/remit/commute death). Exercised on **Cabinet's advice**; subject to judicial review only if arbitrary/mala fide.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Pardoning power (Art 72) □

HIGH

Advanced · Constitutional position (Art 53, 74, 75) □□

GS-II Indian Polity

INTRO & ORIGIN

□ **Nominal executive** — Ambedkar: "head of the State but not of the Executive… symbol of the nation." □ **42nd Amdt (1976):** advice of CoM made **binding**. □ **44th Amdt (1978):** President can **return once** for reconsideration, but **reconsidered advice is binding**. (K.R. Narayanan used this over UP 1997 & Bihar 1998 President's Rule.) □ **Situational discretion** (not a general personal policy power): appointing a PM in a **hung Lok Sabha**; dismissing a CoM that can't prove confidence; dissolving LS when CoM has lost majority.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Nominal executive — Ambedkar: "head of the State but not of the Executive… symbol of the nation." **42nd Amdt (1976):** advice of CoM made **binding**. **44th Amdt (1978):** President can **return once** for reconsideration, but **reconsidered advice is binding**. (K.R. Narayanan used this over UP 1997 & Bihar 1998 President's Rule.) **Situational discretion** (not a general personal policy power): appointing a PM in a **hung Lok Sabha**; dismissing a CoM that can't prove confidence; dissolving LS when CoM has lost majority.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Constitutional position (Art 53, 74, 75) □□

HIGH

Advanced · PART B — THE VICE-PRESIDENT (Art 63–71) □

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART B — THE VICE-PRESIDENT (Art 63–71) □.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → PART B — THE VICE-PRESIDENT (Art 63–71) □

HIGH

Advanced · Election & qualifications

GS-II Indian Polity

INTRO & ORIGIN

 Electoral college = **members of both Houses of Parliament ONLY** — includes **nominated members**, **excludes state MLAs** (Ambedkar: VP mainly presides over Rajya Sabha). Same PR-STV secret ballot. Qualifications: citizen · **35 years** · qualified for **Rajya Sabha** · no office of profit. Nomination: **20 proposers + 20 seconders**, deposit **₹15,000**. Oath administered by the **President**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Election & qualifications

HIGH

Advanced · Term, removal, functions

GS-II Indian Polity

INTRO & ORIGIN

 5-year term; resigns to **President**. **Removal:** resolution passed by **effective majority** of **Rajya Sabha** + agreed by **Lok Sabha** (simple majority); **can only be initiated in Rajya Sabha**; 14 days' notice; **no ground required** (no formal impeachment). **Functions:** (1) **ex-officio Chairman of Rajya Sabha**; (2) **acts as President** on a vacancy for **max 6 months**. Unlike the **US VP**, the Indian VP does **NOT** become President for the unexpired term — only **acts** until a new President is elected. Called "**His Superfluous Highness**" by some scholars.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Term, removal, functions

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: State MLAs vote in the VP election

CORRECT: only MPs vote for VP; MLAs vote for President.

WRONG: Nominated MPs vote in the presidential election

CORRECT: no (only elected); but they **can** vote in impeachment.

WRONG: Indian President has a qualified veto

CORRECT: he has **absolute/suspensive/pocket**; **qualified = US President**.

WRONG: President can veto a constitutional amendment bill

CORRECT: must assent (24th Amdt).

WRONG: Governor can pardon a death sentence

CORRECT: only the President can (Art 72 vs 161).

WRONG: VP is removed by impeachment

CORRECT: by an **RS effective-majority resolution + LS agreement**, no ground stated.

WRONG: VP succeeds as President for the full unexpired term

CORRECT: only **acts for max 6 months** (unlike US VP).

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □ **Articles 200/201:** the five-judge Article 143 opinion of **20 Nov 2025** held that courts cannot create rigid timelines or automatic deemed assent, while prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial review. □ □□ Debate over **President's/Governor's discretion**, mercy-petition delays, and **re-promulgation of ordinances** (D.C. Wadhwa doctrine) recur. □ **VP transition 2025** — after Jagdeep Dhankhar's resignation, C. P. Radhakrishnan was elected on 9 September 2025 and entered office on 12 September 2025. Article 68 requires a casual VP vacancy to be filled **as soon as possible**, gives the successor a fresh five-year term, and contains no six-month outer deadline. □ **Current office control (checked 28 August 2026):** official profiles continue to list Droupadi Murmu as President and C. P. Radhakrishnan as Vice-President.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The President is a rubber stamp." Critically examine the situational discretion of the office. Ordinance-making and the D.C. Wadhwa doctrine — executive overreach vs legislative necessity. Governor/President assent to bills: should a constitutional time-limit be prescribed?

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Verified PYQ application

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ ***2025 GS-II Q3 (10 marks, 150 words):*** *"Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?" Route: Art 72 and ministerial advice vs US Article II personal executive power → Indian court-martial/death-sentence scope vs US federal-offence/impeachment limits → mala fides/arbitrariness review → pre-emptive pardon covers completed conduct before charge/conviction, not future offences. Complete comparative spine: ../basic/Comparative-Constitutional-Schemes.md. less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→*

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Verified PYQ application

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2022	GS-II	4	Role of the Vice-President as Chairman of the Rajya Sabha	Discuss · 10 marks · 150 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2022	GS-II	14	Election procedures for the Presidents of India and France	Critically examine · 15 marks · 250 words	Dedicated comparative owner plus presidential-office support	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2022* ***Paper(s):*** *GS-II* ***Routed question demands:*** *2*

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Role of the Vice-President as Chairman of the Rajya Sabha

Advanced learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Role of the Vice-President as Chairman of the Rajya Sabha	**Dimension 2** Election procedures for the Presidents of India and France
Dimension 3 The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

STATIC THEORY

- Election procedures for the Presidents of India and France

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE → What this owner must now support

End of Register Notes - UPSC Agent / Copilot CLI